MADHYA PRADESH

Economic Offensive Wing

By Rahul Noronha



NO APPEALS The Ujjain district administration demolishing a kite shop in Topkhana on January 16

Over the past two years, the Madhya Pradesh government has launched a broad crackdown on crime. However, while this might ordinarily have been a positive development, many say the state's goal is to be seen as handing out punishments, even if there is no direct link between a crime and the person held responsible for it.

In early January, the Ujjain district administration ordered a crackdown on shops selling *manjha*s (powdered glass-coated kite strings), as these can often cause serious accidents. On January 4, three people were booked, including Mohammed Zubair Khan, a 28-year-old resident of Ujjain's Topkhana. Then, on January 15, tragedy struck—Neha Anjana, a 20-year-old woman, bled to death after becoming entangled in a *manjha* that had been abandoned on a road. Anjana's death resulted in officials re-targeting those they had already punished—Khan says he got a notice on January 16 saying his shop was an illegal structure, and part of it was demolished hours later.

However, the situation is not entirely black-and-white. Khan says some of his land had been acquired for a road widening project, and that he had expanded his shop back onto the acquired land. This means the administration was well within its rights to conduct a demolition. However, Khan says many other shops in his locality also encroach onto the road, and his was the only one targeted. Two other *manjha* sellers in Ujjain—Ritik Jadhav and Vijay Bhawsar—also saw their shops demolished the same day. Ajay Dubey, an activist, highlights the ad hoc process, saying, "There may be other properties that are also illegal, but since their owners haven't been accused of a crime, the law turns a blind eye."

With political leaders fully backing such actions, sources say police and administration officials across the state are actively looking to boost their enforcement tallies. The public—perhaps unaware of the ad hocism or indifferent to the complexities of such situations—isn't complaining either.

IN MP, PROPERTY DEMOLITION IS NOW THE GO-TO PUNISHMENT FOR A VARIETY OF CRIMES

Explaining the state's preference for property demolition as a catch-all punishment, a police officer, speaking on condition of anonymity, says, "When a crime is committed, people expect some form of 'justice' to be served instantly. Demolitions are akin to encounters, which often have similar support from the public." Asheesh Singh, DM of Ujjain, adds that demolitions have another justification: "The idea is to hit criminals' finances to weaken them."

The state says such efforts are part of an ongoing 'anti-land mafia' drive. Data from the home department shows 779 cases registered in the past two years against land mafias, with 1,453 encroachments dismantled and 557 acres of government land worth Rs 558 crore recovered. However, the state is also playing fast and loose with the definition of 'mafia'—many of the accused, such as the kite sellers in Ujjain, aren't members of criminal syndicates, just ordinary people on the wrong side of the law. Another problem is that the property demolished sometimes does not belong to the accused, but to a relative, making families pay for the crimes of individual members. Yet another is that punishments often fall only on petty criminals. "If the idea is to hit a mafia's commercial interests," says Dubey, "then the entire chain that benefits from the organised crime should be punished."

Highlighting the legal boundaries, retired Supreme Court Justice Deepak Gupta says, "The police cannot hold anyone guilty—it is for the courts to do so. If demolitions are carried out after following the due process of law, they are legal." MP advocate general Prashant Singh defends the state, saying, "If anyone feels that their rights are being curtailed, they can appeal in court." Others have a different view. "Punishment has to have deterrent effect, but you cannot punish the family of the accused and not the accused themselves," says senior state high court lawyer Siddharth Seth. Punishments also have to be credible to deter crime. And, on that count, the state's ad hoc law enforcement is not a promising sign. ■